

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Lily Kim	Team: Squad #06	CCRB Case #: 202006059	☐ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 09/05/2020 9:43 PM	Location of Incident: 1419 Bruckner Boulevard- BP Gas Station	18 Mo. SOL 5/4/2022	Precinct: 43		
Date/Time CV Reported Tue, 09/08/2020 1:54 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 09/08/2020 1:54 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Robert Vassallo	04886	954397	043 PCT
2. POM James Murphy	26051	964304	043 PCT
3. POM Jose Velez	04949	961415	043 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo stopped the vehicle in which § 87(2)(b) was an occupant.	
B . SGT Robert Vassallo	Discourtesy: Sergeant Robert Vassallo acted discourteously toward § 87(2)(b)	
C . SGT Robert Vassallo	Discourtesy: Sergeant Robert Vassallo acted discourteously toward § 87(2)(b)	
D . SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo failed to provide § 87(2)(b) with a business card.	
E . SGT Robert Vassallo	Abuse: Sergeant Robert Vassallo refused to provide his shield number to § 87(2)(b)	
F . SGT Robert Vassallo	Untruthful Stmt.: Sergeant Robert Vassallo provided a misleading official statement to the CCRB.	
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On September 8, 2020, § 87(2)(b) filed the following complaint via the CCRB Online Complaint Form.

On September 5, 2020 at approximately 9:43 p.m., § 87(2)(b) was driving when Sgt. Robert Vassallo, PO James Murphy, PO Jose Velez, and PO Manuel Medeiros of the 43rd Precinct were in an unmarked SUV and pulled § 87(2)(b) over into a BP gas station located at 1419 Bruckner Avenue in the Bronx (**Allegation A—Abuse of Authority**, § 87(2)(g)). During a back-and-forth verbal exchange between Sgt. Vassallo and § 87(2)(b) about why § 87(2)(b) had been stopped, Sgt. Vassallo mocked § 87(2)(b) by imitating his voice and gestures (**Allegation B—Discourtesy**, § 87(2)(g)). § 87(2)(b) handed Sgt. Vassallo his ID. Sgt. Vassallo did not hand it back to § 87(2)(b) but placed it on the windshield of § 87(2)(b) vehicle, and it slipped under the hood of the vehicle (**Allegation C—Discourtesy**, § 87(2)(g)). As the officers returned to their vehicle, § 87(2)(b) yelled out his window and made a general request for business cards and shield numbers. Sgt. Vassallo did not provide his business card or shield number (**Allegation D and E—Abuse of Authority**, § 87(2)(g)). No summonses or arrests resulted from this incident.

Sgt. Vassallo provided a misleading official statement to the CCRB (**Allegation F—Untruthful Statement**, § 87(2)(g)). § 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

Body-worn camera footage was obtained of this incident. There was no surveillance footage of this incident.

Findings and Recommendations

Allegation A—Abuse of Authority: Sergeant Vassallo stopped the vehicle in which § 87(2)(b) was an occupant.

At the 0:44 mark in Sgt. Vassallo's BWC video (**BR 01**), Sgt. Vassallo drives behind § 87(2)(b) into the BP. At the 0:57 mark, Sgt. Vassallo exits the vehicle and approaches § 87(2)(b) driver's window.

§ 87(2)(b) testified (**BR 02**) that he drove down Bronx River Avenue eastbound towards Hunts Point with § 87(2)(b) in the passenger seat when officers in an unmarked black SUV directly behind him turned on their lights and pulled him over. § 87(2)(b) pulled into the BP gas station located at 1419 Bruckner Boulevard in the Bronx. Sgt. Vassallo, PO Velez, PO Medeiros, and PO Murphy exited the police vehicle, and Sgt. Vassallo informed him that he was pulled over for his license plate lights. § 87(2)(b) did not have license plate lights, as he believed they were not required by law.

Sgt. Vassallo testified (**BR 03**) that he was driving when he and/or his officers observed § 87(2)(b) vehicle ahead of him and noticed that his license plate lights were not on. Sgt. Vassallo did not remember if he observed the infraction himself, or if another officer pointed it out. Sgt. Vassallo then activated the emergency lights of his vehicle to pull § 87(2)(b) over. Sgt. Vassallo did not remember if he observed any other violations at that time. Although Sgt. Vassallo ultimately did not issue a summons to § 87(2)(b) for the traffic violation, he could have.

PO Murphy's (**BR 04**) and PO Velez's (**BR05**) statements were consistent with Sgt. Vassallo's.

Every motor vehicle except a motorcycle, driven upon a public highway during the period from one-half hour after sunset to one-half hour before sunrise shall display: if required to display a number plate on the rear, a white light which shall illuminate the numerals on such plate in such manner as to render such numerals legible for at least fifty feet from the rear, NY CLS Vehicle and Traffic Law § 375 (BR 06).

It is undisputed that § 87(2)(b) license plate was unlit, either because he did not have lights or because they were off, and he was pulled over for this reason. This was a traffic violation according to NY CLS Vehicle and Traffic Law § 375.

§ 87(2)(g)

Allegation B—Discourtesy: Sergeant Robert Vassallo acted discourteously toward § 87(2)(b)

Sgt. Vassallo and § 87(2)(b) conversation is captured between the 1:05 mark and 1:33 mark, and the 2:36 mark and 3:09 mark of PO Medeiros' BWC (BR 07). The video is partially obstructed by PO Medeiros' hand and arm from the 1:28 to 1:31 mark, but this is when § 87(2)(b) handed Sgt. Vassallo the ID card. Sgt. Vassallo did not change his tone of voice during their conversation, and the only gesture he made with his hands was an eating motion toward the end of the interaction, at the 3:09 mark in the BWC.

§ 87(2)(b) stated that during the back and forth with Sgt. Vassallo about the ID, Sgt. Vassallo mocked § 87(2)(b) by imitating the way he spoke. § 87(2)(b) is homosexual, and Sgt. Vassallo imitated his gestures and voice. Sgt. Vassallo did not repeat what § 87(2)(b) said but spoke in a manner like § 87(2)(b). Sgt. Vassallo did not comment on or make any statements about § 87(2)(b) homosexuality.

§ 87(2)(b) was uncooperative with the investigation.

Sgt. Vassallo testified that he did not imitate § 87(2)(b) voice, gestures, or the way he spoke. Sgt. Vassallo did not mock § 87(2)(b) for his sexual identity or the way he spoke or acted.

PO Murphy and PO Velez both stood by the passenger's side of the vehicle and did not hear or observe any conversation between Sgt. Vassallo and § 87(2)(b). They did not observe the alleged behavior.

Police documentation confirmed that PO Medeiros' resignation is pending permission as of 11/6/2020 (BR 08).

§ 87(2)(b) alleged that Sgt. Vassallo mocked him by imitating his gestures and voice, specifically during the exchange about the ID, which is captured by BWC. PO Murphy and PO Velez were unable to observe this from the other side of the vehicle, and Sgt. Vassallo denied mocking or imitating § 87(2)(b). In PO Medeiros' BWC, Sgt. Vassallo does not appear to alter his voice, manner of speaking, or gestures to mock or imitate § 87(2)(b).

§ 87(2)(g)

Allegation C—Discourtesy: Sergeant Robert Vassallo acted discourteously toward § 87(2)(b).

At the 1:05 mark in Sgt. Vassallo's BWC video, he first approaches § 87(2)(b) window and asks for his ID. § 87(2)(b) asks why he was stopped in an annoyed but level tone. At the 1:28 mark, § 87(2)(b) rolls his eyes, takes his ID out of the sunglass compartment, and hands it to Sgt. Vassallo. At the 2:56 mark, Sgt. Vassallo tells § 87(2)(b) that he will "cut him a break," and places § 87(2)(b) license on the windshield.

§ 87(2)(b) testified that Sgt. Vassallo told § 87(2)(b) that he could have given him a ticket for his broken license plate light but that he was not going to. Instead of handing § 87(2)(b) his license, Sgt. Vassallo placed it on the windshield of § 87(2)(b) vehicle, and it slipped under the hood of the vehicle. § 87(2)(b) retrieved the license from under the hood at the end of the incident, after the officers left.

Sgt. Vassallo admitted that he placed § 87(2)(b) ID on the windshield of the vehicle to avoid physical contact with § 87(2)(b) due to safety concerns. Sgt. Vassallo's safety concerns resulted from § 87(2)(b) demeanor and behavior. Sgt. Vassallo described § 87(2)(b) as "verbally combative and aggressive" in that he gave Sgt. Vassallo "attitude" and called PO Murphy "fat." § 87(2)(b) also accused Sgt. Vassallo of racially profiling him and ignored Sgt. Vassallo's initial request for ID. These all pointed to the fact that § 87(2)(b) was noncompliant. Sgt. Vassallo was unable to describe any specific physical actions or gestures that were aggressive or caused him to fear for his safety and the safety of his officers. Sgt. Vassallo's years of experience informed his decision based on § 87(2)(b) overall demeanor.

The Department is committed to accomplishing its mission of protecting the lives and property of all citizens of New York City by treating every citizen with compassion, courtesy, professionalism, and respect, while efficiently rendering police services and enforcing the laws impartially, by fighting crime both through deterrence and the relentless pursuit of criminals, Patrol Guide Procedure 200-02 (BR 09).

It is undisputed that Sgt. Vassallo placed § 87(2)(b) ID on the windshield of his vehicle instead of handing it to him. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation D—Abuse of Authority: Sergeant Robert Vassallo failed to provide § 87(2)(b) with a business card.

Allegation E—Abuse of Authority: Sergeant Robert Vassallo refused to provide his shield number to § 87(2)(b)

At the 3:16 mark in Sgt. Vassallo's BWC video, § 87(2)(b) asks, "And can I have cards? I need numbers." Sgt. Vassallo states, "I'll give you a card," steps toward § 87(2)(b) again, and turns off his camera. Before Sgt. Vassallo's footage cuts out, § 87(2)(b) tells § 87(2)(b) to take a photograph. § 87(2)(b) request is not captured by PO Velez (BR 09), PO Murphy (BR 10), or PO Medeiros' body-worn camera footage, as they all started to walk away toward their vehicle and deactivated their cameras before the request was made.

As Sgt. Vassallo's BWC footage confirmed that § 87(2)(b) through his open driver's side window, requested business cards and shield numbers in Sgt. Vassallo's direction and the other officers were not in earshot to hear this request as they had walked away from § 87(2)(b) vehicle, coupled with the noise in the area, these allegations have been pleaded solely to Sgt. Vassallo.

§ 87(2)(b) stated that immediately after Sgt. Vassallo left the ID on the windshield, he started to walk away with the other officers. Through his open window, § 87(2)(b) requested the officers to identify themselves, but they all walked away as if he had not asked them. § 87(2)(b) yelled something along the lines of, "Can I get some identification, business cards, anything?" aimed toward all four officers. He believed all the officers heard him without a doubt. § 87(2)(b) did not ask any officers individually for their identification. § 87(2)(b) asked § 87(2)(b) to take a photograph of Sgt. Vassallo during the incident, which is how § 87(2)(b) obtained Sgt. Vassallo's name.

§ 87(2)(b) was uncooperative with attempts to obtain the photograph taken by § 87(2)(b)

Sgt. Vassallo stated that § 87(2)(b) did not request a business card or shield number. When his BWC footage was presented to him capturing § 87(2)(b) verbal request, Sgt. Vassallo confirmed that he heard and responded to § 87(2)(b) request. Sgt. Vassallo testified that he did not provide his business card to § 87(2)(b) because he ran out of them. Sgt. Vassallo did not remember if he provided his name or shield number to § 87(2)(b) verbally or in writing. Sgt. Vassallo explained that although he heard and responded to the request, the request did not fully register in his mind because he had safety concerns about the situation.

PO Velez and PO Murphy both testified that they were unable to hear the conversation between Sgt. Vassallo and § 87(2)(b) as they stood on opposite sides of the vehicle. PO Velez and PO Murphy did not hear § 87(2)(b) request and did not voluntarily provide their names, business cards, or shield numbers to § 87(2)(b) and did not refuse to do so. They did not know if Sgt. Vassallo provided his information or refused to provide his information.

An officer shall offer a business card to any person requesting identifying information, or provide such information verbally to such person and allow such person sufficient time to record such information when such officer does not have an adequate number of pre-printed business cards or hand-written cards on his or her person at the time of such law enforcement activity, NYC Administrative Code 14-174 (BR 11).

§ 87(2)(g)

§ 87(2)(b) Sgt. Vassallo's BWC confirms that § 87(2)(b) made the request and that Sgt. Vassallo responded. § 87(2)(b) testified that the officers all walked away, entered their vehicle, and left, but the BWC confirms that Sgt. Vassallo responded, although it does not capture the end of the encounter. BWC also captured § 87(2)(b) asking § 87(2)(b) to take

a photograph of Sgt. Vassallo in the BWC video, which § 87(2)(b) stated was how he identified him without obtaining his name and shield number directly from the sergeant. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation F—Untruthful Statement: Sergeant Robert Vassallo provided a misleading official statement to the CCRB.

At the 24:02 mark in Sgt. Vassallo's CCRB interview, Investigator Lily Kim asked Sgt. Vassallo, "Did § 87(2)(b) request business cards or shield numbers from you?" and he responded, "No." At the 24:56 mark, Investigator Julia Moran asked, "Did you ever refuse to provide a business card?" and Sgt. Vassallo responded, "I was never asked, and I would never refuse to provide a business card."

At the 26:24 mark, Sgt. Vassallo's BWC was played from the 3:00 mark to the 3:10 mark without audio, then resumed with audio to the 3:19 mark. Between 27:24 and 27:53 in the interview, the following verbatim exchange then occurred:

Inv. Kim: Did you hear the statement that § 87(2)(b) just made?

Sgt. Vassallo: At that time, no. Because we're obviously engaging in a conversation, but after watching the body-cam, yes.

Inv. Kim: So, you're saying that in the moment, you didn't register the request?

Sgt. Vassallo: Yes, as you can see, we're talking over each other.

At the 27:53 mark, Sgt. Vassallo's BWC was played on until the 3:21 mark. Between 28:00 and 24:42 in the interview, the following verbatim exchange occurred:

Inv. Kim: Did you hear yourself?

Sgt. Vassallo: Yes, now I recollect this.

Inv. Kim: So, you stated to him, "I'll give you a card." Is that correct?

Sgt. Vassallo: Yes.

Inv. Kim: So, my question that follows is, did you provide him a card?

Sgt. Vassallo: I had run out.

Inv. Kim: So, you didn't have any on you at that time?

Sgt. Vassallo: At that time, no.

Inv. Kim: Did you provide your name, shield number, to him in writing at all as a substitute for the card?

Sgt. Vassallo: "Don't recall."

Between 30:38 and 31:52 in the interview, the following verbatim exchange occurred:

Inv. Moran: To your understanding, what would have been the procedure if § 87(2)(b) had asked for cards and numbers and you didn't have any at the time?

Sgt. Vassallo: The procedure? I could give it to him verbally. It's not a problem.

Inv. Moran: Did you provide that information verbally?

Sgt. Vassallo: I don't recall. I know it was a heated exchange. At the end, it's over a year ago, almost over a year ago, I can't remember.

Inv. Moran: Did you ever refuse, after watching this BWC, does it refresh your recollection if you ever refused to provide your business card or your shield number?

Sgt. Vassallo: I didn't actively refuse anything. I didn't hear the request.

Inv. Moran: So to your independent recollection now, you didn't hear the request?

Sgt. Vassallo: At the moment, due to the exchange, I must have not been thinking. I appear to be so flustered from the video. So, I probably wasn't processing it.

Officers are prohibited from intentionally making misleading official statements. A misleading statement is intended to misdirect the fact finder, and materially alter the narrative. A material fact is a significant fact that a reasonable person would recognize as relevant to, or affecting, the subject matter of the issue at hand. When a member of the service is afforded an opportunity to recollect with the benefit of credible evidence, and the member makes a statement consistent with the evidence, the member's prior statement will not be considered a false statement. However, it may be considered a misleading statement, Patrol Guide Procedure 203-08 (BR 12).

Sgt. Vassallo initially testified that § 87(2)(b) did not request business cards or shield numbers. After viewing his BWC during his interview, Sgt. Vassallo altered his prior statements each time he was confronted with evidence contradicting them, and ultimately acknowledged that he responded to § 87(2)(b) request for business cards and shield numbers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
 - [REDACTED]
[REDACTED]
[REDACTED]
- Sgt. Vassallo has been a member-of-service for 8 years and has been a subject in eight CCRB complaints and 22 allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] did not respond when mediation was offered to him, and he was uncooperative with subsequent contact attempts.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- As of December 28, 2020, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (BR 17).

Squad No.: 6

Investigator:	<u>Lily Kim</u>	<u>Investigator Lily Kim</u>	<u>8/13/2021</u>
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date